



CHAPTER 66

An Act to constitute a Council on Tribunals ; to make further provision as to the appointment, qualifications and removal of the chairman and members, and as to the procedure, of certain tribunals ; to provide for appeals to the courts from decisions of, or on appeal from, certain tribunals ; to require the giving of reasons for certain decisions of tribunals and Ministers ; to extend the supervisory powers of the High Court and the Court of Session ; to abolish certain restrictions on appeals from the Court of Session to the House of Lords ; to make further provision with respect to the appointment and qualifications of General Commissioners of Income Tax, and provision for the payment of allowances to General and Additional Commissioners ; and for purposes connected with the matters aforesaid. [1st August, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall be a council, entitled the Council on Tribunals,— Council on
Tribunals.

- (a) to keep under review the constitution and working of the tribunals specified in the First Schedule to this Act (being the tribunals constituted under or for the purposes of the statutory provisions specified in that Schedule), and, from time to time, to report on their constitution and working;
- (b) to consider and report on such particular matters as may be referred to the Council under this Act with respect to tribunals other than the ordinary courts of law, whether or not specified in the First Schedule to this Act, or any such tribunal;

- (c) to consider and report on such matters as may be referred as aforesaid, or as the Council may determine to be of special importance, with respect to administrative procedures involving, or which may involve, the holding by or on behalf of a Minister of a statutory inquiry, or any such procedure.

(2) The Council on Tribunals (hereinafter referred to as "the Council") shall consist of not more than fifteen nor less than ten members appointed by the Lord Chancellor and the Secretary of State, and one of the members shall be so appointed to be chairman of the Council.

(3) There shall be a Scottish Committee of the Council (hereinafter referred to as "the Scottish Committee") which shall consist of either two or three members of the Council designated by the Secretary of State and either three or four persons, not being members of the Council, appointed by the Secretary of State; and the Secretary of State shall appoint one of the members of the Scottish Committee (being a member of the Council) to be chairman of the Scottish Committee.

(4) In appointing members of the Council regard shall be had to the need for representation of the interests of persons in Wales.

(5) The members of the Council and the persons appointed to be members of the Scottish Committee shall hold and vacate office under the terms of the instruments under which they are appointed, but may resign office by notice in writing to the Ministers or Minister by whom they were appointed; and any such member who ceases to hold office shall be eligible for re-appointment.

(6) There shall be paid to the chairman of the Council and the chairman of the Scottish Committee such salaries, and to the other members of the Council and of the Scottish Committee such fees (if any), as may be determined by the Treasury.

(7) The salaries and fees payable under the foregoing subsection, together with such expenses of the Council and of the Scottish Committee (including subsistence allowances for and travelling expenses of their members) as may be approved by the Treasury, shall be defrayed out of moneys provided by Parliament.

(8) Part II of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies certain commissions and other bodies all members of which are disqualified under that Act) and the Part substituted for the said Part II by the Third Schedule to that Act in its application to the Senate and the House of Commons of Northern Ireland, shall have effect as if after the entry relating to the Commonwealth Telecommunications Board there were inserted "The Council on

Tribunals" and after the entry relating to the Restrictive Practices Court there were inserted "The Scottish Committee of the Council on Tribunals".

(9) Nothing in subsection (1) of this section shall authorise or require the Council to deal with any matter with respect to which the Parliament of Northern Ireland has power to make laws.

2.—(1) Subject to the provisions of this section, any report by, or reference to, the Council shall be made to, or as the case may be by, the Lord Chancellor and the Secretary of State.

Reports of, and
references to,
Council and
Scottish
Committee.

(2) A reference to the Council of a matter relating only to England and Wales may be made by the Lord Chancellor, and a reference to the Council of a matter relating only to Scotland may be made by the Secretary of State; and the report of the Council on a reference so made shall be made to the Minister making the reference.

(3) The Council shall not make a report on any such tribunal as is specified in Part II of the First Schedule to this Act, or on any matter referred to the Council by the Secretary of State, until the Council have referred the matter of the report for consideration, and report to the Council, by the Scottish Committee and have considered the report of that Committee.

(4) Where, without any reference having been made to them, the Council report on any such matter as is mentioned in paragraph (c) of subsection (1) of section one of this Act, then—

- (a) if the matter relates only to England and Wales, subsection (2) of this section shall apply as if the matter had been referred to the Council by the Lord Chancellor,
- (b) if the matter relates only to Scotland, the two foregoing subsections shall apply as if the matter had been referred to them by the Secretary of State.

(5) The Scottish Committee may of its own motion make a report to the Council with respect to the constitution or working of any such tribunal as is specified in Part II of the First Schedule to this Act or with respect to any matter falling within paragraph (c) of subsection (1) of the foregoing section and relating only to Scotland.

(6) If the Council, in reporting on any matter which they have referred to the Scottish Committee or on which that Committee has reported to the Council of its own motion, do not adopt the report of that Committee without modification, or if the Council do not make a report on matters on which the Scottish Committee has reported to the Council of its own motion, the Scottish Committee may submit its report to the Secretary of State.

(7) The Council shall make an annual report to the Lord Chancellor and the Secretary of State on their proceedings and

those of the Scottish Committee, and the Lord Chancellor and the Secretary of State shall lay the annual report before Parliament with such comments (if any) as they think fit.

Chairmen etc.
of certain
tribunals:
provisions
as to
appointment.

3.—(1) The chairman, or any person appointed to act as chairman, of any of the tribunals to which this subsection applies shall (without prejudice to any statutory provisions as to qualifications) be selected by the appropriate authority from a panel of persons appointed by the Lord Chancellor.

(2) Members of panels constituted under this section shall hold and vacate office under the terms of the instruments under which they are appointed, but may resign office by notice in writing to the Lord Chancellor; and any such member who ceases to hold office shall be eligible for re-appointment.

(3) Subsection (1) of this section applies to any such tribunal as is specified in paragraph 9, sub-paragraph (a) of paragraph 11, sub-paragraph (a) or (b) of paragraph 12, sub-paragraph (a), (b) or (e) of paragraph 13 or paragraph 19 of the First Schedule to this Act.

(4) One of the members of any such board of referees as is specified in paragraph 3 of the First Schedule to this Act shall be designated by the appropriate authority to be chairman of the board; and that member, and any such single referee as is specified in the said paragraph 3, shall be a person selected by the appropriate authority from a panel of persons appointed by the Lord Chancellor.

(5) The person or persons constituting any such tribunal as is specified in paragraph 8 of the First Schedule to this Act shall be appointed by the Lord Chancellor, and where such a tribunal consists of more than one person the Lord Chancellor shall designate which of them is to be the chairman.

(6) In this section "the appropriate authority" means the Minister who apart from this Act would be empowered to appoint or select the chairman, person to act as chairman, members or member of the tribunal in question.

(7) A panel may be constituted under this section for the purposes either of a single tribunal or of two or more tribunals, whether or not of the same description.

(8) This section shall come into operation on the appointed day; but—

(a) any person appointed by the appropriate authority before that day to be chairman of any tribunal to which subsection (1) of this section applies shall on and after that day and during the continuance of his appointment be deemed to be a member of a panel constituted by the Lord Chancellor for the purposes of that tribunal and to have been selected by the appropriate authority to be chairman of the tribunal;

- (b) any person appointed by the appropriate authority before that day to be a member of a panel from which apart from this Act the chairman of the tribunal would fall to be selected shall on and after that day and during the continuance of his appointment be deemed to be a member of a panel constituted by the Lord Chancellor for the purposes of that tribunal;
- (c) any power to terminate any such appointment as is mentioned in the two foregoing paragraphs shall be exercisable by, and only by, the Lord Chancellor.

(9) The following provisions shall have effect for the application of this section to Scotland:—

- (a) in relation to any of the tribunals referred to in the foregoing provisions of this section which sits in Scotland, this section shall have effect with the substitution for any reference to the Lord Chancellor of a reference to the Lord President of the Court of Session;
- (b) subsection (1) of this section shall apply, with the substitution aforesaid, to any such tribunal as is specified in paragraph 34 of the First Schedule to this Act.

(10) In relation to any of the tribunals referred to in the foregoing provisions of this section which sits in Northern Ireland, this section shall have effect with the substitution for any reference to the Lord Chancellor of a reference to the Lord Chief Justice of Northern Ireland.

4.—(1) Without prejudice to the generality of paragraph (a) of subsection (1) of section one of this Act, the Council may make to the appropriate Minister general recommendations as to the making of appointments to membership of any such tribunals as are specified in the First Schedule to this Act or of panels constituted for the purposes of any such tribunals; and (without prejudice, however, to any statutory provision having effect with respect to such appointments) the appropriate Minister shall have regard to recommendations under this section.

(2) In this section “the appropriate Minister” means, in relation to appointments of any description, the Minister making the appointments or, if they are not made by a Minister, the Minister in charge of the Government Department concerned with the tribunals in question.

(3) The following provisions shall have effect as respects any such tribunal as is specified in Part II of the First Schedule to this Act:—

- (a) the Council shall not make any such recommendations as aforesaid until they have referred the matter of the recommendations for consideration, and report to the

Council, by the Scottish Committee and have considered the report of that Committee;

- (b) without prejudice to the generality of subsection (5) of section two of this Act, the Scottish Committee may of its own motion propose any such general recommendations as aforesaid as expedient to be made by the Council to the appropriate Minister;
- (c) if the Council, in making recommendations under this section on any matter which they have referred to the Scottish Committee or on which that Committee has made proposals, do not adopt the report or proposals of that Committee without modification, or if the Council do not make recommendations on matters on which the Scottish Committee has made proposals to the Council, the Scottish Committee may submit its report or proposals to the Secretary of State.

Concurrence
required to
removal of
members of
tribunals.

5. No power of a Minister other than the Lord Chancellor to terminate a person's membership of any such tribunal as is specified in the First Schedule to this Act, or of a panel constituted for the purposes of any such tribunal, shall be exercisable except with the consent of—

- (a) the Lord Chancellor, the Lord President of the Court of Session and the Lord Chief Justice of Northern Ireland, if the tribunal sits in all parts of the United Kingdom;
- (b) the Lord Chancellor and the Lord President of the Court of Session, if the tribunal sits in all parts of Great Britain;
- (c) the Lord Chancellor and the Lord Chief Justice of Northern Ireland, if the tribunal sits both in England and Wales and in Northern Ireland;
- (d) the Lord Chancellor, if the tribunal does not sit outside England and Wales;
- (e) the Lord President of the Court of Session, if the tribunal sits only in Scotland;
- (f) the Lord Chief Justice of Northern Ireland, if the tribunal sits only in Northern Ireland:

Provided that this section shall not apply to any such tribunal as is specified in sub-paragraph (a) of paragraph 10, paragraph 15, sub-paragraph (b) of paragraph 20, paragraph 21, paragraph 26 or sub-paragraph (a) of paragraph 31 of the First Schedule to this Act.

Legal
qualifications
for certain
tribunals.

6. A person shall not be qualified to be appointed umpire or deputy umpire under subsection (4) of section forty-one of the National Service Act, 1948, or to be appointed chairman or deputy chairman of the appellate tribunal constituted under the Fourth Schedule to that Act, unless he is a barrister, advocate or solicitor of not less than ten years standing.

7.—(1) Vacancies among the General Commissioners occurring after the appointed day, being vacancies which under the First Schedule to the Income Tax Act, 1952, would fall to be supplied by persons named in lists drawn up by the Land Tax Commissioners, shall be supplied by persons appointed by the Lord Chancellor; and accordingly—

General Commissioners of Income Tax: appointment and qualifications.

- (a) paragraphs 1 and 4, and sub-paragraph (1) of paragraph 5, of Part I of that Schedule shall not have effect in relation to such vacancies;
- (b) in paragraph 2 of the said Part I the words “ and the number of persons to supply vacancies, respectively ” shall cease to have effect, as respects divisions in England and Wales, as from the appointed day.

In this section “ General Commissioners ” and “ division ” have the same meanings as in the Income Tax Act, 1952.

(2) The property qualification for General Commissioners and Additional Commissioners is hereby abolished.

(3) General Commissioners and Additional Commissioners shall be entitled to receive out of moneys provided by Parliament payments by way of travelling allowance or lodging allowance of such amounts and in such circumstances as may be determined by the Treasury.

8.—(1) No power of a Minister or of the Lord President of the Court of Session to make, approve, confirm or concur in procedural rules for any such tribunal as is specified in the First Schedule to this Act shall be exercisable except after consultation with the Council.

Council to be consulted before making procedural rules.

(2) The Council, in the exercise of their functions under this section as respects any such tribunal as is specified in Part II of the First Schedule to this Act, shall consult with the Scottish Committee.

(3) In this section “ procedural rules ” includes any statutory provision relating to the procedure of the tribunal in question.

(4) This section shall come into operation on the appointed day.

9.—(1) If any party to proceedings before any such tribunal as is specified in paragraph 2, 3, 4 or 8, sub-paragraph (b) of paragraph 10, or paragraph 14, 18, 19 or 23 of the First Schedule to this Act is dissatisfied in point of law with a decision of the tribunal given on or after the appointed day he may, according as rules of court may provide, either appeal therefrom to the High Court or require the tribunal to state and sign a case for the opinion of the High Court.

Appeals from certain tribunals.

(2) Rules of court made with respect to all or any of the said tribunals may provide for authorising or requiring a tribunal, in the course of proceedings before it taking place on or after the appointed day, to state, in the form of a special case for the decision of the High Court, any question of law arising in the proceedings, and a decision of the High Court on a case stated by virtue of this subsection shall be deemed to be a judgment of the Court within the meaning of section twenty-seven of the Supreme Court of Judicature (Consolidation) Act, 1925 (which relates to the jurisdiction of the Court of Appeal to hear and determine appeals from any judgment of the High Court).

(3) In relation to proceedings in the High Court or the Court of Appeal brought by virtue of this section the power to make rules of court shall include power to make rules prescribing the powers of the High Court or the Court of Appeal with respect to—

(a) the giving of any decision which might have been given by the tribunal;

(b) the remitting of the matter with the opinion or direction of the court for re-hearing and determination by the tribunal;

(c) the giving of directions to the tribunal,
and different provisions may be made for different tribunals.

(4) Rules of court relating to such proceedings as aforesaid may provide for excluding so much of subsection (1) of section sixty-three of the Supreme Court of Judicature (Consolidation) Act, 1925, as requires appeals to the High Court to be heard and determined by a Divisional Court, but no appeal to the Court of Appeal shall be brought by virtue of this section except with the leave of the High Court or the Court of Appeal.

(5) Subsection (1) of this section shall apply to a decision of the Minister of Transport and Civil Aviation on an appeal from the traffic commissioners for any traffic area or the traffic commissioner for the metropolitan traffic area as it applies to a decision of any of the tribunals mentioned in that subsection, but with the substitution for the reference to a party to proceedings of a reference to any person who had, or if aggrieved would have had, a right to appeal to that Minister (whether or not he has exercised that right); and accordingly references in subsections (1) and (3) of this section to a tribunal shall be construed, in relation to such an appeal, as references to the Minister of Transport and Civil Aviation.

(6) The following provisions shall have effect for the application of this section to Scotland:—

(a) in relation to any proceedings in Scotland of any of the tribunals referred to in the foregoing provisions of this section, or to a decision of the Minister of Transport

and Civil Aviation on an appeal from proceedings in Scotland of traffic commissioners, this section shall have effect with the following modifications, that is to say,—

- (i) for references to the High Court or the Court of Appeal there shall be substituted references to the Court of Session;
- (ii) in subsection (2) for the words “ in the form of a special case for the decision of the High Court ”. there shall be substituted the words “ a case for the opinion of the Court of Session on ” and the words from “ and a decision ” to the end of the subsection shall be omitted;
- (iii) subsection (4) shall be omitted;
- (b) this section shall apply, subject to the modifications specified in the foregoing paragraph, to proceedings before any such tribunal as is specified in sub-paragraph (b) of paragraph 31, or paragraph 32 or 34 of the First Schedule to this Act as it applies to proceedings before the tribunals referred to in subsection (1) of this section; and
- (c) an appeal shall lie, with the leave of the Court of Session or of the House of Lords, from any decision of the Court of Session under this section, and such leave may be given on such terms as to costs or otherwise as the Court of Session or the House of Lords may determine.

(7) In relation to any proceedings in Northern Ireland of any of the tribunals referred to in subsection (1) of this section, this section shall have effect with the following modifications, that is to say:—

- (a) in subsection (2) for the words “ section twenty-seven of the Supreme Court of Judicature (Consolidation) Act, 1925 ” there shall be substituted the words “ section twenty-four of the Supreme Court of Judicature Act (Ireland), 1877 ”;
- (b) in subsection (4) for the words “ may provide for excluding so much of subsection (1) of section sixty-three of the Supreme Court of Judicature (Consolidation) Act, 1925, as requires appeals to the High Court to be heard and determined by a Divisional Court ” there shall be substituted the words “ shall provide that the appeal shall be heard or, as the case may be, the decision of the High Court shall be given, by a single judge ”.

(8) Her Majesty may by Order in Council direct that all or any of the provisions of this section, so far as it relates to proceedings in the Isle of Man or any of the Channel Islands of the tribunal specified in paragraph 23 of the First Schedule to this

Act, shall extend to the Isle of Man or to any of the Channel Islands subject to such modifications as may be specified in the Order.

(9) In this section the expression "decision" includes any direction or order, and references to the giving of a decision shall be construed accordingly.

Application
of Act to
additional
tribunals.

10.—(1) The Lord Chancellor and the Secretary of State may by order made by them by statutory instrument direct that Part I or Part II of the First Schedule to this Act shall have effect as if there were specified therein any such tribunals, other than any of the ordinary courts of law, as may be provided by the order.

(2) The Lord Chancellor and the Secretary of State may by order made by them as aforesaid make provision, as respects any such tribunal as is for the time being specified in the First Schedule to this Act, not being a tribunal mentioned in section three of this Act, for applying any of the provisions of that section to the tribunal or for providing for the appointment by the Lord Chancellor, the Lord President of the Court of Session or the Lord Chief Justice of Northern Ireland of the chairman of the tribunal and of any person to be appointed to act as chairman.

(3) The Lord Chancellor and the Secretary of State may by order made by them as aforesaid apply section nine of this Act to any such tribunal as is for the time being specified in the First Schedule to this Act.

(4) Any order under this section may make any such adaptations of the provisions of this Act as may be necessary or expedient in consequence of the order.

(5) Any order under this section may be varied or revoked by a subsequent order made by the Lord Chancellor and the Secretary of State by statutory instrument.

(6) Any statutory instrument made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) Nothing in this section shall authorise the making of an order with respect to a tribunal having jurisdiction only over matters with respect to which the Parliament of Northern Ireland has power to make laws.

Extension of
supervisory
powers of
superior
courts.

11.—(1) As respects England and Wales or Northern Ireland, any provision in an Act passed before the commencement of this Act that any order or determination shall not be called into question in any court, or any provision in such an Act which by similar words excludes any of the powers of the High Court, shall not have effect so as to prevent the removal of the proceedings into the High Court by order of certiorari or to prejudice the powers of the High Court to make orders of mandamus:

Provided that this subsection, so far as it relates to the High Court in Northern Ireland, shall not affect any provision in its application to a matter with respect to which the Parliament of Northern Ireland has power to make laws.

(2) As respects Scotland, any provision in an Act passed before the commencement of this Act that any order or determination shall not be called into question in any court, or any provision in such an Act which by similar words excludes any jurisdiction which the Court of Session would otherwise have to entertain an application for reduction or suspension of any order or determination, or otherwise to consider the validity of any order or determination, shall not have effect so as to prevent the exercise of any such jurisdiction.

(3) Nothing in this section shall affect section twenty-six of the British Nationality Act, 1948, or apply to any order or determination of a court of law or the Foreign Compensation Commission or where an Act makes special provision for application to the High Court or the Court of Session within a time limited by the Act.

12.—(1) Subject to the provisions of this section, where after the appointed day—

- (a) any such tribunal as is specified in the First Schedule to this Act gives any decision, or
- (b) any Minister notifies any decision taken by him after the holding by him or on his behalf of a statutory inquiry, or taken by him in a case in which a person concerned could (whether by objecting or otherwise) have required the holding as aforesaid of a statutory inquiry,

Reasons to
be given for
decisions
of tribunals
and Ministers.

it shall be the duty of the tribunal or Minister to furnish a statement, either written or oral, of the reasons for the decision if requested, on or before the giving or notification of the decision, to state the reasons:

Provided that the statement may be refused, or the specification of the reasons restricted, on grounds of national security, and the tribunal or Minister may refuse to furnish the statement to a person not primarily concerned with the decision if of opinion that to furnish it would be contrary to the interests of any person primarily concerned.

(2) The foregoing subsection shall not apply to decisions in respect of which any statutory provision has effect, apart from this section, as to the giving of reasons, or to decisions of a Minister in connection with the preparation, making, approval, confirmation, or concurrence in regulations, rules, or byelaws, or orders or schemes of a legislative and not an executive character.

(3) Any statement of the reasons for such a decision as is mentioned in paragraph (a) or (b) of subsection (1) of this section,

whether given in pursuance of that subsection or of any other statutory provision, shall be taken to form part of the decision and accordingly to be incorporated in the record.

(4) If, after consultation with the Council, it appears to the Lord Chancellor and the Secretary of State that it is expedient that decisions of any particular tribunal or any description of such decisions, or any description of decisions of a Minister, should be excluded from the operation of subsection (1) of this section on the ground that the subject-matter of such decisions, or the circumstances in which they are made, make the giving of reasons unnecessary or impracticable, the Lord Chancellor and the Secretary of State may by order direct that subsection (1) of this section shall not apply to such decisions.

(5) The power to make orders conferred by this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament, and any order under this section may be varied or revoked by a subsequent order made after consultation with the Council.

Repeal of
restrictions on
appeals from
Court of
Session to
House of
Lords.

13. The following provisions (which restrict the right of appeal from the Court of Session to the House of Lords in certain cases), as originally enacted and as applied by any other enactment, shall cease to have effect, that is to say:—

- (a) subsection (3) of section fifteen of the Town and Country Planning (Scotland) Act, 1945;
- (b) sub-paragraph (2) of paragraph 15 of the First Schedule to the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947;
- (c) subsection (4) of section nine of the Town and Country Planning (Scotland) Act, 1947;
- (d) in paragraph (a) of subsection (12) of section three of the Lands Tribunal Act, 1949, the words from “and no appeal” to the end of the paragraph;
- (e) the proviso to paragraph (a) of subsection (3) of section ten of the Lands Tribunal Act, 1949;
- (f) paragraph 4 of the Second Schedule to the Housing (Scotland) Act, 1950;
- (g) sub-paragraph (2) of paragraph 9 of the First Schedule to the Rivers (Prevention of Pollution) (Scotland) Act, 1951; and
- (h) sub-paragraph (2) of paragraph 9 of the First Schedule to the Food and Drugs (Scotland) Act, 1956.

Interpretation.

14.—(1) In this Act “Minister” includes any Board presided over by a Minister, “statutory inquiry” means an inquiry or hearing held or to be held in pursuance of a duty imposed by any statutory provision, and “statutory provision” means a provision contained in, or having effect under, any enactment.

(2) References in this Act to members of tribunals include references to the person constituting a tribunal consisting of one person.

(3) References in this Act to the working or a decision of, or procedural rules for, any such tribunals as are specified in paragraph 10, 15, 20, 21, 26, 31 or 35 of the First Schedule to this Act do not include references to their working, decisions, or procedure in the exercise of executive functions.

15. The enactments specified in the Second Schedule to this Repeals. Act are hereby repealed to the extent specified in the third column of that Schedule,—

(a) in the case of the enactments specified in Part I of that Schedule, as from the passing of this Act,

(b) in the case of the enactments specified in Part II thereof, as from the appointed day.

16. In this Act the expression “the appointed day” means Commence- such day as the Lord Chancellor and the Secretary of State may ment. by order made by statutory instrument appoint, and different days may be appointed for different provisions of this Act.

17. This Act may be cited as the Tribunals and Inquiries Short title. Act, 1958.

SCHEDULES

FIRST SCHEDULE

Sections 1, 2, 3,
4, 5, 8, 9, 10, 12,
14.

TRIBUNALS UNDER GENERAL SUPERVISION OF COUNCIL

PART I

TRIBUNALS UNDER DIRECT SUPERVISION OF COUNCIL

<i>Matters with which tribunal concerned</i>	<i>Tribunal and statutory authority</i>
Agriculture	1. (a) The Agricultural Land Tribunals established under section seventy-three of the Agriculture Act, 1947; (b) arbitrators appointed (otherwise than by agreement) under the Sixth Schedule to the Agricultural Holdings Act, 1948.
Children's voluntary homes.	2. Appeal tribunals constituted in accordance with section thirty of, and Part I of the First Schedule to, the Children Act, 1948.
Compensation for loss of office or employment, and pensions.	3. Referees and boards of referees constituted under the statutory provisions specified in the Annex to this Part of this Schedule.
Education	4. Independent Schools Tribunals constituted under section seventy-two of, and the Sixth Schedule to, the Education Act, 1944.
Forestry	5. Committees appointed for the purposes of section seven or eight of the Forestry Act, 1951, being committees the members of which are appointed by the Minister of Agriculture, Fisheries and Food.
Land	6. The Lands Tribunal constituted under paragraph (b) of subsection (1) of section one of the Lands Tribunal Act, 1949.
Milk and dairies ...	7. Tribunals constituted under regulations made under, or having effect as if made under, Part II of the Food and Drugs Act, 1955.
Mines and Quarries...	8. Tribunals for the purposes of section one hundred and fifty of the Mines and Quarries Act, 1954.
National Assistance, etc.	9. The appeal tribunals constituted in accordance with the Fifth Schedule to the National Assistance Act, 1948.

<i>Matters with which tribunal concerned</i>	<i>Tribunal and statutory authority</i>
National Health Service.	10. (a) Executive Councils constituted under subsections (1) and (2) of section thirty-one of the National Health Service Act, 1946, and joint committees constituted under subsection (4) of that section; (b) the tribunal constituted under section forty-two of the National Health Service Act, 1946; (c) service committees of an Executive Council, being committees constituted in accordance with regulations made under the National Health Service Act, 1946.
National Insurance ...	11. (a) Local tribunals constituted under regulations under subsection (1) of section forty-three of the National Insurance Act, 1946; (b) the National Insurance Commissioner, any deputy Commissioner appointed under subsection (3) of section forty-three of the National Insurance Act, 1946, and any tribunal presided over by the Commissioner or a deputy Commissioner.
National Insurance (Industrial Injuries).	12. (a) Local appeal tribunals constituted for the purposes of the National Insurance (Industrial Injuries) Act, 1946; (b) medical appeal tribunals constituted for the purposes of the National Insurance (Industrial Injuries) Act, 1946; (c) the Industrial Injuries Commissioner appointed under subsection (1) of section forty-two of the National Insurance (Industrial Injuries) Act, 1946, any deputy Commissioner so appointed and any tribunal constituted under regulations under paragraph (a) of subsection (2) of that section.
National service ...	13. (a) The Military Service (Hardship) Committees constituted under the Third Schedule to the National Service Act, 1948; (b) the local tribunals constituted under the Fourth Schedule to the National Service Act, 1948;

1ST SCH.
—cont.Matters with which
tribunal concerned
National service—cont.

Tribunal and statutory authority

- (c) the appellate tribunal constituted under the Fourth Schedule to the National Service Act, 1948;
- (d) the referees selected under the proviso to subsection (3) of section twenty-three of the National Service Act, 1948;
- (e) the Reinstatement Committees appointed under subsection (1) of section forty-one of the National Service Act, 1948;
- (f) the umpire and any deputy umpire appointed under subsection (4) of section forty-one of the National Service Act, 1948.
- Nurses' training institutions. 14. Persons nominated under subsection (2) of section twenty-one of the Nurses Act, 1957.
- Patents, designs and trade marks. 15. The comptroller-general of patents, designs, and trade marks, and any officer authorised to exercise the functions of the comptroller under subsection (3) of section sixty-two of the Patents and Designs Act, 1907.
- Pensions ... 16. (a) Pensions Appeal Tribunals constituted under the Pensions Appeal Tribunals Act, 1943, being tribunals appointed for England and Wales;
- (b) tribunals appointed under regulations under section one of the Police Pensions Act, 1948, to hear appeals by such persons as are mentioned in subsection (1) of section one of the Police (Overseas Service) Act, 1945.
- Performing rights ... 17. The Performing Right Tribunal established under section twenty-three of the Copyright Act, 1956.
- Prevention of fraud (investments). 18. The tribunal of inquiry constituted under section six of the Prevention of Fraud (Investments) Act, 1958.
- Rents ... 19. Tribunals constituted under section one of the Furnished Houses (Rent Control) Act, 1946.
- Revenue ... 20. (a) The Commissioners for the general purposes of the income tax acting under section six of the Income Tax Act, 1952 for any division in England or Wales;

*Matters with which
tribunal concerned**Tribunal and statutory authority*1ST SCH.
—cont.

Revenue—cont.

- (b) the Commissioners for the special purposes of the Income Tax Acts appointed by or under section eight of the Income Tax Act, 1952;
- (c) any Commissioners acting in England or Wales in pursuance of section eleven of the Income Tax Act, 1952;
- (d) the Board of Referees appointed for the purposes of section two hundred and eighty-seven of the Income Tax Act, 1952.

Road Traffic ...

- 21. (a) The traffic commissioners for any area appointed under Part IV of the Road Traffic Act, 1930 and the traffic commissioner so appointed for the metropolitan traffic area;
- (b) the licensing authority for the purposes of Part I of the Road and Rail Traffic Act, 1933.

Transport charges and
carriers' licences.

- 22. The Transport Tribunal established under subsection (1) of section twenty of the Railways Act, 1921.

Wireless telegraphy ...

- 23. The tribunal established under section nine of the Wireless Telegraphy Act, 1949.

ANNEX

STATUTORY PROVISIONS FOR TRIBUNALS SPECIFIED IN PARAGRAPH 3
OF THIS PART OF THIS SCHEDULE

Regulations under section thirty-seven of the Coal Industry Nationalisation Act, 1946.

Regulations under section sixty-seven of the National Insurance Act, 1946.

Regulations under section sixty-eight of the National Health Service Act, 1946 or orders under subsection (9) of section eleven or subsection (5) of section thirty-one of that Act.

Regulations under section sixty-seven of the National Health Service (Scotland) Act, 1947.

Regulations under the Fifth Schedule to the Fire Services Act, 1947.

Regulations under the Transport Act, 1947 and the Transport Act, 1953.

1ST SCH.
—cont.

Regulations under section one hundred and one of the Town and Country Planning Act, 1947.

Subsections (3) and (5) of section fifty-four of the Electricity Act, 1947, and regulations under section fifty-five of that Act or that section as applied by section twenty-seven of the Electricity Act, 1957.

Regulations under section one hundred and forty of the Local Government Act, 1948, or such regulations as applied by any Local Act, whether passed before or after this Act.

Regulations under subsection (1) or (2) of section sixty of the National Assistance Act, 1948.

Subsection (6) of section twenty-nine of the River Boards Act, 1948, and regulations under section thirty of that Act.

Rules under section three of the Superannuation (Miscellaneous Provisions) Act, 1948.

Subsections (3) and (5) of section fifty-eight of the Gas Act, 1948, and regulations under section sixty of that Act.

Regulations under section forty-two of the Justices of the Peace Act, 1949.

Subsection (4) of section six of the Commonwealth Telegraphs Act, 1949, and regulations under sections six and seven of that Act.

Regulations under section twenty-five of the Prevention of Damage by Pests Act, 1949.

Regulations under section twenty-four of the Iron and Steel Act, 1953.

Regulations under section twelve of the Electricity Re-organisation (Scotland) Act, 1954.

PART II

TRIBUNALS UNDER SUPERVISION OF SCOTTISH COMMITTEE

- | | | | | |
|-------------------|-----------|-----|-----|--|
| Agriculture | ... | ... | 24. | Arbiters appointed (otherwise than by agreement) under section seventy-seven of, or the Sixth Schedule to, the Agricultural Holdings (Scotland) Act, 1949. |
| Children's homes. | voluntary | | 25. | Appeal tribunals constituted in accordance with section thirty of, and Part II of the First Schedule to, the Children Act, 1948. |
| Crofters | ... | ... | 26. | The Crofters Commission constituted under section one of the Crofters (Scotland) Act, 1955. |
| Education | ... | ... | 27. | Independent Schools Tribunals constituted under section one hundred and eleven of, and the Fifth Schedule to, the Education (Scotland) Act, 1946. |

<i>Matters with which tribunal concerned</i>		<i>Tribunal and statutory authority</i>
Forestry	28.	Committees appointed for the purposes of section seven or eight of the Forestry Act, 1951, being committees the members of which are appointed by the Secretary of State.
Land	29.	Official arbiters appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919.
Milk and dairies ...	30.	Tribunals constituted under orders made under, or having effect as if made under, section eleven of the Milk (Special Designations) Act, 1949.
National Health Service.	31.	(a) Executive Councils constituted under subsections (1) and (2) of section thirty-two of the National Health Service (Scotland) Act, 1947, and joint committees constituted under subsection (4) of that section; (b) the tribunal constituted under section forty-three of the National Health Service (Scotland) Act, 1947; (c) service committees of an Executive Council, being committees constituted in accordance with regulations made under the National Health Service (Scotland) Act, 1947.
Nurses' training institutions.	32.	Persons nominated under subsection (2) of section twenty-four of the Nurses (Scotland) Act, 1951.
Pensions	33.	Pensions Appeal Tribunals constituted under the Pensions Appeal Tribunals Act, 1943, being tribunals appointed for Scotland.
Rents	34.	Tribunals constituted under section one of, and the Schedule to, the Rent of Furnished Houses Control (Scotland) Act, 1943.
Revenue	35.	(a) The Commissioners for the general purposes of the income tax acting under section six of the Income Tax Act, 1952 for any division in Scotland; (b) any Commissioners acting in Scotland in pursuance of section eleven of the Income Tax Act, 1952; (c) referees selected for the purposes of section thirty-three of the Finance (1909-10) Act, 1910.

Section 15.

SECOND SCHEDULE

ENACTMENTS REPEALED

PART I

ENACTMENTS REPEALED AS FROM PASSING OF ACT

Chapter and Session	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 42.	The Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947.	In the First Schedule, in paragraph 15, sub-paragraph (2).
10 & 11 Geo. 6. c. 53.	The Town and Country Planning (Scotland) Act, 1947.	In section nine, subsection (4).
12, 13 & 14 Geo. 6. c. 42.	The Lands Tribunal Act, 1949.	In section three, in subsection (12), in paragraph (a), the words from "and no appeal" to the end; in section ten, in subsection (3), the proviso to paragraph (a).
14 Geo. 6. c. 34.	The Housing (Scotland) Act, 1950.	In the Second Schedule, paragraph 4.
14 & 15 Geo. 6. c. 66.	The Rivers (Prevention of Pollution) (Scotland) Act, 1951.	In the First Schedule, in paragraph 9, sub-paragraph (2).
15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.	The Income Tax Act, 1952.	In the First Schedule, in Part I, in paragraph 3 the words "and without other qualification", in paragraph 5 in sub-paragraph (7) the words are qualified, and", in paragraph 8 the words "duly qualified", in paragraph 10 in sub-paragraph (4) the words "being respectively qualified under this Act", in paragraph 12 the words "qualified as required by this Act", and paragraph 14, Part III.
4 & 5 Eliz. 2. c. 30.	The Food and Drugs (Scotland) Act, 1956.	In the First Schedule, in paragraph 9, sub-paragraph (2).

PART II

2ND SCH.
—cont.

ENACTMENTS REPEALED AS FROM APPOINTED DAY

Session and Chapter	Short Title	Extent of Repeal
20 & 21 Geo. 5. c. 43.	The Road Traffic Act, 1930.	In section one hundred and two, in subsection (6), the words "shall be final".
23 & 24 Geo. 5. c. 14.	The London Passenger Transport Act, 1933.	In section sixty-one, in subsections (3) and (5), the words "and shall be final and conclusive".
10 & 11 Geo. 6. c. 49.	The Transport Act, 1947.	In section ninety-nine, in subsection (2), the words "and the decision of that referee or board shall be final". In section one hundred and one, in subsection (3), the words from "and where any such provision" to the end.
10 & 11 Geo. 6. c. 54.	The Electricity Act, 1947.	In section fifty-four, in subsections (3) and (5), the words "and the decision of that referee or board shall be final". In section fifty-five, in subsection (5), the words from "and where any such provision" to the end.
11 & 12 Geo. 6. c. 32.	The River Boards Act, 1948.	In section twenty-nine, in subsection (6), the words "and the decision of the referee or board of referees shall be final".
11 & 12 Geo. 6. c. 64.	The National Service Act, 1948.	In section forty-one, in paragraph (a) of subsection (2), the words from "from a panel" to "Committees". In the Third Schedule, the words from "The chairman" to the end.
11 & 12 Geo. 6. c. 67.	The Gas Act, 1948.	In section fifty-eight, in subsections (3) and (5), the words "and the decision of that referee or board shall be final". In section sixty, in subsection (5), the words from "and where any such provision" to the end.
12, 13 & 14 Geo. 6. c. 39.	The Commonwealth Telegraphs Act, 1949.	In section six, in subsection (4), the words "and the decision of that referee or board shall be final". In section seven, in subsection (2), the words from "and, upon a reference" to the end.

2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.	The Income Tax Act, 1952.	In section five hundred and twenty-six, the definition of "Land Tax Commissioners". In the First Schedule, in Part I, in paragraph 5 sub-paragraphs (2) to (6), paragraph 9, paragraph 12, in paragraph 13 in sub-paragraph (2) the words "and the Land Tax Commissioners, respectively".
1 & 2 Eliz. 2. c. 13.	The Transport Act, 1953.	In section twenty-seven, in subsection (4), the words "the decision of the referee or board of referees shall be final, and". In section twenty-eight, in subsection (3), the words "the decision of the referee or board of referees shall be final and".
1 & 2 Eliz. 2. c. 15.	The Iron and Steel Act, 1953.	In section twenty-four, in subsection (3), the words from "and where any such provision" to the end.
2 & 3 Eliz. 2. c. 60.	The Electricity Reorganisation (Scotland) Act, 1954.	In section twelve, in subsection (1) the words "subject to the next following subsection", and subsection (1A).
5 & 6 Eliz. 2. c. 48.	The Electricity Act, 1957.	In section twenty-seven, in subsection (3) the words "Subject to the next following subsection", and subsections (4) and (5). In the Fourth Schedule, in Part II, the entry relating to the Electricity Reorganisation (Scotland) Act, 1954.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Patents and Designs Act, 1907	7 Edw. 7. c. 29.
Finance (1909-10) Act, 1910	10 Edw. 7 & 1 Geo. 5. c. 8.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Railways Act, 1921	11 & 12 Geo. 5. c. 55.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Road Traffic Act, 1930	20 & 21 Geo. 5. c. 43.
Road and Rail Traffic Act, 1933	23 & 24 Geo. 5. c. 53.
County Courts Act, 1934	24 & 25 Geo. 5. c. 53.
Pensions Appeal Tribunals Act, 1943	6 & 7 Geo. 6. c. 39.
Rent of Furnished Houses Control (Scotland) Act, 1943	6 & 7 Geo. 6. c. 44.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Town and Country Planning (Scotland) Act, 1945	8 & 9 Geo. 6. c. 33.
Police (Overseas Service) Act, 1945	9 & 10 Geo. 6. c. 17.
Furnished Houses (Rent Control) Act, 1946	9 & 10 Geo. 6. c. 34.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 27.
Fire Services Act, 1947	10 & 11 Geo. 6. c. 41.
Acquisition of Land (Authorization Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Transport Act, 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Electricity Act, 1947	10 & 11 Geo. 6. c. 54.
Police Pensions Act, 1948	11 & 12 Geo. 6. c. 24.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
River Boards Act, 1948	11 & 12 Geo. 6. c. 32.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Children Act, 1948	11 & 12 Geo. 6. c. 43.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Agricultural Holdings Act, 1948	11 & 12 Geo. 6. c. 63.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Gas Act, 1948	11 & 12 Geo. 6. c. 67.
Milk (Special Designations) Act, 1949	12, 13 & 14 Geo. 6. c. 34.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Wireless Telegraphy Act, 1949	12, 13 & 14 Geo. 6. c. 54.
Prevention of Damage by Pests Act, 1949	12, 13 & 14 Geo. 6. c. 55.
House of Commons (Redistribution of Seats) Act, 1949	12, 13 & 14 Geo. 6. c. 66.
Agricultural Holdings (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 75.
Justices of the Peace Act, 1949... ..	12, 13 & 14 Geo. 6. c. 101.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.